HIGH COURT OF DELHI

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 3432 of 2020 (YEAR: 2021)

CORAM: PRATIBHA M. SINGH

National Car Rental
... Appellant(s) / Petitioner(s)
Versus
All India Trade Union Congress
... Respondent(s)

Acts Referred:	Industrial Disputes Act, 1947
Sections:	Section 2(s) ID Act, Section 25F ID Act

JUDICIAL HEADNOTE & SUMMARY

Interpreted the definition of 'workman' under Section 2(s) of Industrial Disputes Act, emphasizing the nature of primary duties rather than job designations.

RATIO DECIDENDI

The Court held that: Interpreted the definition of 'workman' under Section 2(s) of Industrial Disputes Act, emphasizing the nature of primary duties rather than job designations. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in National Car Rental v. All India Trade Union Congress (Civil Appeal No. 3432 of 2020) were adjudicated before the High Court of Delhi. The matter arose out of claims and contentions concerning Industrial Disputes Act, 1947, particularly Section 2(s) ID Act, Section 25F ID Act. Interpreted the definition of 'workman' under Section 2(s) of Industrial Disputes Act, emphasizing the nature of primary duties rather than job designations.

OPERATIVE ORDER

ORDER: Decided